

WINTER
1944

PLANET STORIES

20c

KEEPER OF THE
DEATHLESS SLEEP

by ALBERT DE PINA

STRANGE ADVENTURES
ON OTHER WORLDS
—THE UNIVERSE OF
FUTURE CENTURIES



WELLS
CARTER
PEACOCK
BRADBURY



WINTER
1944

PLANET STORIES

20c

STRANGE ADVENTURES
ON OTHER WORLDS
—THE UNIVERSE OF
FUTURE CENTURIES

KEEPER OF THE
DEATHLESS SLEEP

by ALBERT DE PINA

WELLS
CARTER
PEACOCK
BRADBURY



The Project Gutenberg eBook of Invader From Infinity

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Invader From Infinity

Author: George A. Whittington

Release date: September 24, 2020 [eBook #63286]

Most recently updated: October 18, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/63286

Credits: Produced by Greg Weeks, Mary Meehan and the Online
Distributed Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK INVADER
FROM INFINITY ***

Invader from Infinity

By GEORGE WHITTINGTON

**"Destroy the Invader," the orders
read—and Captain McPartland's expendable
spacer flashed into suicidal battle.**

**[Transcriber's Note: This etext was produced from
Planet Stories Winter 1944.**

**Extensive research did not uncover any evidence that
the U.S. copyright on this publication was renewed.]**

Commander Jon McPartland stared with hard blue eyes into his view screen. He watched a tiny dot in one corner grow slowly, and heard the unnecessary words of his Lieutenant-Commander, Clemens:

"Observation Officer reports enemy craft sighted, Sir."

"Very good," acknowledged McPartland. "Have Lieutenant Parek compute their speed and course."

Clemens spoke softly into the intra-ship phone, and Commander Jon McPartland returned momentarily to his thoughts. His square jaw was set as though cast in bronze, with hard muscles machined into its contour.

Here was the enemy—the unknown, the alien, who spoke only with destruction! This was the ship that had destroyed System patrols; later a full battle fleet of the Solar System's most powerful space fighters. The interceptors had been unable to establish communication of any sort; and they were blasted into fiery chunks of space debris before getting close enough to use their own guns.

"Well, here they are, Clemens," the Commander said aloud, "and getting uncomfortably close to the System. It looks like they're some other System's dominant intelligence, and we've got planets they want."

"Yes, sir," said the other, "and here we are, with the fastest, most heavily armed space fighter ever built—in the System."

"In the Universe," snapped McPartland. His full lips curved into a grim smile. "Under sealed orders which every citizen from Pluto to Mercury knows are: 'Destroy this ship—or it conquers our System.'"

Lieutenant-Commander Clemens bent to his intra-phone, turned to relay. "Navigation Officer reports enemy ship has altered course to head on. Speed fifty Spatial units."

"Thank you," McPartland stepped to the phone himself.

"This is it, men. You know what it means!" His hands flicked levers swiftly, as he spoke to component units individually:

"Propulsion—full speed ahead. Make every blast tell!

"Navigation—evasive course. Swing wide to draw them away from the System so that if—if—"

"I understand, sir," came the crisp reply from Lieutenant Parek.

"All ray stations," went on McPartland, "fire at maximum range. Radio—any contact?"

"None, sir."

"Magnetic screen interference?" asked the Commander.

"No, sir. No magnetic defense screens apparent on enemy."

"Put ours up full power." Jon McPartland was smiling now, but his eyes were flashing hatred of the alien. Another ten seconds would find them in effective range. The enemy was looming in the view screen, a round glistening sphere—a ball of destruction pitted against his own slim, sleek avenger.

"Screens up, sir, full power," came the response.

Lieutenant-Commander Clemens had headphones clamped over his ears. He was standing by for reports from stations. He turned suddenly, face lined and taut, and reported almost in a whisper:

"We're hit, sir, right through our screens at this range! Partial disintegration in section four. Bulkheads holding."

The Commander was standing wooden-faced, incredulous. But the hatred was building up in his eyes until Clemens shuddered.

"Through our defense screens at this range!" McPartland ground out savagely. He turned back to his view screen with a bitter oath.

There was the sphere, gleaming, flashing against the bottomless black of space—catching starlight, and throwing it back as though the touch of that pure light was distasteful.

What form of intelligence destroyed, killed without warning—without speech?

Clemens' voice broke into the red haze that hovered over his Commander: "Hit again, sir, Section 8. Almost complete disintegration of hull. Bulkheads holding."

Jon McPartland spoke his thoughts aloud. "I saw the ray that time, just a faint glimmer across the black. It should have hit Section 6! And—and THEY have no magnetic screen!"

His hand flicked a lever. "Navigation—break away! Straight course back toward the System."

There was a long pause before Lieutenant Parek replied. It was easy to guess his thoughts; quitting, running away! Then he answered; "Yes, sir!"

Clemens' voice, speaking softly to the intra-ship, was suddenly the only sound in the control room above the muted whine of generators underneath. Jon McPartland, his battle-ending order acknowledged, glared silently into his screen.

There the hateful silver sphere shrank slightly in size. Once again McPartland caught the faint flicker of a ray, the star-studded blackness. The Commander looked a fierce question at Clemens.

"No further damage, sir," said the latter. He laid the headphones aside. "I believe we are out of range. Lieutenant Parek reports our speed sixty-five Spatial Units; we are drawing away from the enemy."

There was no relief in the last words; and Commander McPartland felt a sudden surge of sympathy for the other break through his own bitter anger. Clemens had been gloomy about their chances in the battle; now, the Earth ship broke away from the fight, the Lieutenant-Commander was gloomier in the belief that they hadn't tried hard enough—that they'd turned in cowardly flight. His eyes avoided his superior's.

The latter looked about the room, and no glance was raised to meet his own. Reynolds, the Ray Control Officer stared glumly at his calculators, and fingered the phone that had waited vainly for his range data and fire commands. Clemens, stood quietly, awaiting orders. Engineer McTavish sat in stony silence, gaze fixed on the desk before him, where sensitive indicators flashed red damage signals against a three dimensional scale projection of the ship.

McPartland felt his eyes misting, and ground his teeth, remembering the alien ship and using his hatred of it to fight back the weakness of his own pride in his men. They wanted to fight! They hated cowardice almost as much as they did the murderers they were running from; and these Earthmen thought their own commander a coward. But discipline and training held them to his judgment.

"Hell!" barked McPartland. "We're going back after them."

His words shattered the silence and the gloom. Reynolds' face was suddenly radiant; Clemens relaxed into an expression of smug worry; McTavish grunted.

"Mister McTavish, what about that damage?" demanded the Commander.

Engineer McTavish brought his lanky form up from the chair and into rigidity. "You gave no orders, sir," he reproached, his grey eyes eager.

"Have your men break out two space-suits, Mister," said McPartland. "You and I will go through the bulkheads and inspect the damaged hull."

"Yes, sir." McTavish turned eagerly to his phone.

"Mister Clemens," snapped the Commander, "hold our course. And you may tell the men we're not through fighting."

McPartland and McTavish stepped carefully through the darkness of section four. Behind them, the bulkhead door had been securely dogged shut against the vacuum of space; before them was a ragged jet patch from which distant stars sent faint light to outline the great rip in the hull.

Both men carried powerful flashlights, but preferred to step carefully among dim outlines rather than use lights until they reached the hull. There had been a ray gun here—and its crew; and men, suddenly exposed to cold and pressureless space, make grim corpses.

At the thought, McPartland's big hand gripped the hammer he carried, so that he almost felt the handle through his heavy gauntlet. He had an insane desire to leap out and wait for the other ship—to batter at its silver hull!

As though sensing the thought, the Engineer broke in, speaking through his suit-communicator: "Here we are, sir."

The flashlight blazed in his hand, its beam spreading along the twisted broken metal of the ship's side. Instantly the big hammer flashed into the beam and against the metal near its broken edge, swung with every ounce of fury and strength in Jon McPartland's arm, shoulder and torso.

"If I'm right," he muttered with the swing, "we'll know it now. We'll have a fighting—chance."

He faltered on the last word, as his blow landed and sent some of its force smashing back up his arm and body. But the Commander knew—as a smith knows—the feel of metal under his strength; and Jon McPartland knew his hunch had been right even before McTavish cried:

"You—you *bent* it!"

"Right, Mister. I bent it. And I couldn't bend the steel that went into this ship's hull, could I, McTavish?"

"Blasting right you couldn't, begging your pardon, sir. No man could."

"Then it isn't steel any longer, McTavish—not near the edges of the spot their ray hit!" McPartland twirled the hammer in his hand, eager as a small boy just learning how to whip the neighborhood bully. "Where that ray hit there was disintegration at the center, transmutation at the edges."

Understanding was spreading over the Engineer's face behind the transparent helmet of his space suit. "Then, man, that ray has one magnetic charge; positive or negative, proton or electron."

"And your technicians will tell us which," ordered the Commander. "Get them busy cutting out samples. We want to know quickly. But you and I have enough to do while we wait, Mister."

He led the way back to the bulkhead. Inside, McTavish gave orders, while shedding his space-suit and starting down the corridor to the control room.

McPartland explained as they went. "Our magnetic screens, having electrons and protons, bent their ray. I saw it. That made me think they used a mono-charged stream of particles. Some of the particles in the screen attracted the ray charges, others repelled them. You know, of course," he

went on, "how our screens diffuse our own type of duo-charge beam at long range and protect the ship against them."

"Yes, man!" His Engineer agreed, excitedly now. "And beams from the screened ship go through on initial velocity. But they couldn't use a screen—the enemy: there'd be no balance of forces—they'd bend their own ray!"

"The way we'll bend it, Mister, when we go back after those murderers!" Jon McPartland took a deep, triumphant breath, and his face lit up with a battle smile that made the Engineer's heart lift.

"Mister McTavish, we're going to string a space lifeboat out behind us on about two miles of cable. You are going to rig up our dynamos to make this ship and the lifeboat the poles of an electromagnet. When your Technicians determine the polarity of the enemy ray, we'll make the ship the repelling pole."

"Then, man, begging your pardon, sir, we go back and let them blast," cried the Engineer. "Their ray curves away from us—toward the lifeboat. By the time they figure the trick out, we'll be close enough to blast them wide open."

"We'd better be," his superior concluded grimly. "Or the devils will blast away the lifeboat and the cable. Leave us without an electromagnet—right back where we started from."

Commander Jon McPartland stared with hard blue eyes into his screen. He watched a dot growing into a sphere, and, anticipating the words of Lieutenant-Commander Clemens, ordered:

"Have Lieutenant Parek compute their speed and course."

Clemens, with a look of gloomy reproach at not having been allowed to report, bent to the intra-ship phone. Before he could speak, he straightened, and turned to relay the information coming through his headphones:

"Navigation Officer reports course head on, sir. Speed fifty Spatial Units."

"Thank you." The Commander looked at his Engineer. "All in readiness, Mister McTavish?"

"All in readiness, sir," replied the lanky engineer, his grey eyes twinkling as he added: "They're using an electron ray, and our ship is negative—but this'll be a positive jolt to the enemy, begging your pardon, sir!"

McPartland smiled, the tense muscles along his jaw relaxing for the first time in hours. Clemens coughed and turned aside, bringing a hand up over his mouth.

This effort to preserve his reputation was needed only for a moment. He straightened, adjusting his headphones, and reported:

"Enemy ship changing course, sir, swinging aside."

The Commander glanced quickly at the screen, disbelief flicking momentarily over his square features. He leaped to the intra-phone, snatching the headphones from the Lieutenant-Commander.

"Mister Parek," he ordered, "swing with that ship. We must get in close—quickly!" Aside to McTavish, he added: "I hope the cable to that spaceboat holds when it snaps around on this turn."

"It will hold, sir," the Engineer assured him. "But we'll lose some speed by the drag—only until we re-accelerate, sir."

McPartland tossed the headphones back to Clemens, left the intra-phone, and went back to his screen. For the next few minutes he watched the alien silver sphere, flashing and glinting in the starlight.

Jon McPartland whispered, half to himself: "The cunning devils! They know something's up when a beaten ship comes back to fight again."

"Begging your pardon, sir," said Reynolds, the Ray Control Officer, in his quiet manner. "They must have seen the spaceboat strung behind and become suspicious."

"You're right, Mister," acknowledged the Commander. "The killers are careful of their skins." He glared at the hateful beauty of the other ship, growing no larger in his screen. "Come on," he challenged.

But the enemy avoided every effort of the earth ship to close in, turning inside. At last, the space fighters were carving a great circle in space, the

Earthmen on the outside, traveling a greater distance so that superior speed was largely nullified.

McPartland glared into his screen. Clemens stood by his intra-phone, relaying messages from Parek. Reynolds sat before his calculators, unmoving except for fingers caressing the mike that still waited for his words. McTavish sprawled before his three dimensional model, his grey eyes going over and over every line of it.

At last the Commander spoke the thought in the minds of all four: "We're six Spatial units apart. Maximum range of their ray is five units; ours is four. Coming head on, we pass through the gap between their range and ours in seconds—we almost made it last time! But, if we overhaul them from behind, it might take minutes to close that gap with our speed advantage."

"Right, sir," McTavish agreed, "and minutes would be long enough for them to blast our spaceboat and cable away."

"And then us," finished Clemens. He drew himself up. "I am ready, sir, when you give the order."

Blazing anger faded from the Commander's eyes and face. "Thank you, Mister Clemens. I know you are, and so is every man of our crew. But we're here to save the System, and there's still hope.

"These animals have come a long way," he said jabbing a fist toward the ship in the screen. "They think they can afford to wait us out. But maybe they can't. Mister Clemens, ask Radio to try and contact Earth."

It took long, anxious minutes to make the contact. Meanwhile, Lieutenant Parek held the ship on the same course, with instructions to close at once if the enemy moved toward them.

But the situation remained unchanged, the great circle being traced and retraced through space, ray guns trained, unused. At last, Radio reported contact.

Jon McPartland stepped to the visa-phone. Before him, the faint image of Marshal Denton, supreme commander of all System forces, flickered uncertainly over the great distance.

"McPartland," came the Marshal's voice, thin and wavering through the poor connection. "I knew you'd do it!"

McPartland saluted smartly. "We have met the enemy, sir, and stopped their advance toward the System, but—"

He went on, reporting their first encounter, his decision and action, and concluded: "Sir, we can hold them here until help reaches us. One more ship—rigged as we are—even the slowest old hulk in the fleet—and we can finish them!"

There was a long pause. Marshal Denton drew himself up, his face, only a dim blob on the screen, gave no hint of his emotions as he answered. "Commander McPartland, I must refuse your request for reinforcements." There was no mistaking his feeling in the next words:

"Jon, I've got a System of confidence in you, but my hands are tied. The Supreme System Congress of Specialists has met and made decisions for defense—decisions that are not subject to change. From here on, I can only carry their strategy into effect."

McPartland stood rigidly. He was stunned. He heard his own voice, as from far away; "And those decisions, sir?"

"Every ship we have is concentrated just beyond Pluto's orbit." Denton answered. "They are arranged in a defensive pattern of depths, that the Specialists consider impenetrable." His voice was even.

"Sir," the Commander groaned, "this attacker has the range and a ray that makes our magnetic screens useless. These fiends will go through that fleet like light through glass. And the planets—they've been disarmed for years! They'll be defenseless!"

In the screen, the Marshal's dim figure slumped. "Jon, the Specialists rule the System."

"I understand, sir," McPartland heard himself say. "What are your orders, sir?"

"Just your best, Commander Jon McPartland. That will be the best any of us could give. Good luck!"

"Thank you, sir." McPartland turned from the visa-phone as Marshal Denton faded from view.

Lieutenant-Commander Clemens stood ready beside his intra-phone. Engineer McTavish sprawled before his model, his grey eyes going lovingly over every line of it. Ray Control Officer Reynolds fingered his mike.

Jon McPartland swept them with his blue eyes, turned to glare again at the taunting silver sphere in his view screen. He started to speak, stopped as Reynolds raised his head.

"Beg your pardon, sir," said the Ray Officer. "May I give the men false range data when—when—you decide we're finished, sir? I'll feel better just using this stuff, and the gun crews—those that are left—will feel better thinking they're striking a blow for the System.

"It can't do any harm, sir," he pleaded as the Commander snapped his mouth shut, staring hard.

"Reynolds," bellowed the Commander, "ages ago there was an airfighter who opened fire on his enemy with machine guns before he was in range. The opponent usually took evasive action—thinking he was in danger—and lost speed, so that this fighter could overtake and destroy him.

"Reynolds, you're a genius!"

"Man," interrupted McTavish, "our rays would fall short! Those devils wouldn't be fooled by rays—two Spatial units away!"

"No, Mister McTavish," his superior replied slowly, "our disintegrator rays wouldn't fool them. But we have landing searchlights that throw a beam a dozen Spatial units.

"McTavish get down to those beams; stop a couple down to pencils; shade them to throw a pretty violet-colored finger; cut down the power so they'll reach about six units! Get out of here!"

The Engineer's lanky body was already through the control room door. Jon McPartland was grinning. A grin that didn't fade even when he looked back to his screen, to see the glinting silver sphere swinging serenely along beside them. He turned to Clemens.

"Tell Lieutenant Parek to close at full speed the second they start for us. No evasive action—straight course and let the spaceboat and cable take it!"

"Navigation acknowledges, sir." Clemens replied solemnly, and the Commander knew his Lieutenant had anticipated and given the order.

"All ray stations ready, sir," added the quiet Reynolds.

McPartland's grin broadened. "Give them the straight data, Mister Reynolds."

"Yes, sir."

It was only seconds later that a voice rang in Clemens' headphones, in accents loud enough to be heard through the silent, waiting control room. "McTavish reporting. All in readiness."

"Let them have it then," ordered the Commander. "But be sure you miss!"

With the suddenness of calculated surprise, a thin pencil of violet light stabbed out from the Earth ship. It knifed through space, scant yards behind the silver sphere, and winked out. A second beam reached forth, passed beneath the gleaming enemy.

Immediately, the sphere bobbed in space, began to weave an intricate course toward the Earth ship. It swelled in the viewscreen before McPartland.

He laughed, a low savage sound. "A super-race ego, to think our gunners are that bad. But they'll learn!"

Reynolds began to drone into his phone, his eyes never leaving the calculators over which his fingers were flying. "Range five units, position ____"

A faint flicker reached toward the Earth-ship, swung aside. McPartland laughed again.

"Range, four point nine," droned Reynolds, and went on with steady flow of data.

The pale alien beam reached out again. This time Clemens reported. "Spaceboat destroyed by direct hit, sir."

"Range four point six," said Reynolds.

The sphere was looming ahead of them now, its ray sweeping off to the side, direction steady even as the sphere danced and spun.

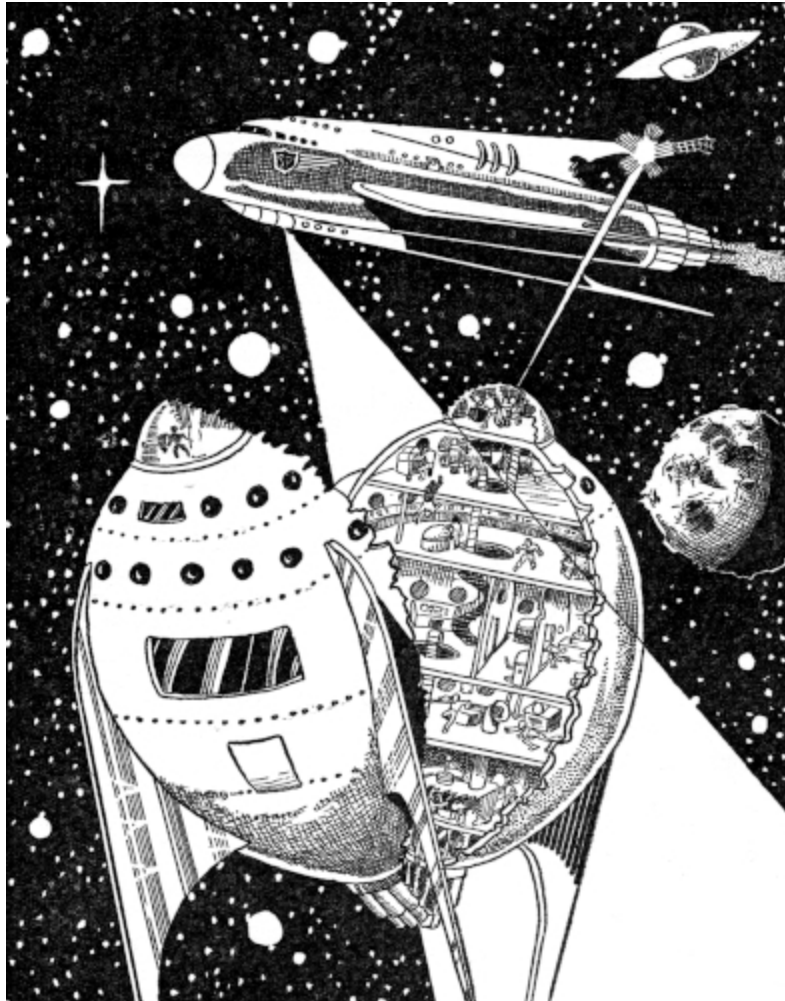
"Range four point one—"

"Cable almost completely gone, sir," Clemens said.

"Steady," McPartland answered. He took a deep breath and heard the voice of the Ray Control Officer rising triumphantly:

"Units one, three, five and seven, Fire! Range four point zero, position—"

Four livid fingers of red sprang hungrily toward the silver sphere. They struck almost together, followed as the ship twisted and spun for brief moments. Then, when the ball of metal suddenly ceased its gyrations and floated limply, helplessly in space, those fingers probed, slashed unhindered through its vitals, over every foot of hull.



It was a scene of awesome destruction, as the ship that had thrown back starlight so proudly, haughtily, was blotted out of existence, its atoms torn apart and hurled back to the universe as free energy.

The glow in his viewscreen threw red highlights into McPartland's black hair, matched the blazing vengeance in his blue eyes. But he watched, jaw hard, fist clenched, until destruction was complete.

"They got what they gave our ships," he said at last, "merciless destruction. They deserved no better.

"We'll go back to the System, and turn in our report. Our Scientists will perfect a defense against a mono-charge ray, and we won't need to worry

about handling any other ships that might follow this one."

"Right, sir," said McTavish. "And, man, begging your pardon, sir, I hope we're in on the handling!"

Lieutenant-Commander Clemens shook his head moodily. "We did well. But the Congress of Specialists will be disappointed. We didn't bring back prisoners for examination."

But his eyes were smiling—again.

*** END OF THE PROJECT GUTENBERG EBOOK INVADER FROM
INFINITY ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.